

26STCV22450 26STCV22450

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-15

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Case Number: 26STCV22450 Hearing Date: September 15, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:14 PM on September 14, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 14, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This is a commercial unlawful detainer action.

Plaintiff

Commerce Realty Developers, a California general partnership moves for summary judgment or, in the alternative, summary adjudication.

TENTATIVE RULING

Plaintiff Commerce Realty Developers, a California general partnership's motion for summary judgment is GRANTED.

ANALYSIS

Motion For Summary Judgment

Discussion

Plaintiff

Commerce Realty Developers, a California general partnership moves for summary judgment or, in the alternative, summary adjudication.

(s) Subdivisions (a) and (b) do not apply to actions brought pursuant to Chapter 4 (commencing with Section 1159[1]) of Title 3 of Part 3.

(Civ. Proc. Code § 437c(s).)

Thus, a separate statement is not required.

A plaintiff moving for summary judgment need not disprove affirmative defenses, but only need produce evidence establishing the elements of its claims. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564-65.)

Here,

Plaintiff's Complaint for unlawful detainer alleges that the term under the Lease commenced on August 18, 2018, a Three Day Notice To Pay the sum of \$131,714.26, the amount of Rent outstanding under the Lease through July 31, 2026 for the past year, or Quit was served on July 6, 2026 and more than three days have elapsed since the service of the Notice, and there was no lawful tender of the amounts set forth therein. (Complaint, ¶¶ 6, 13, 14.)

The basic elements of unlawful
detainer based on default in payment of rent contained in Civ. Proc. Code, §
1161(2) are:

- (1) Tenant is in possession,
- (2) Tenant is in possession without
permission,
- (3) Tenant is in default of rent,
- (4) Tenant has been served and has
three days' notice in writing and
- (5) Service of such notice is made
upon the tenant

The
Complaint prays for the following relief:

1. For immediate restitution and possession of
the Premises;
2.
For an order that the Lease is forfeited and terminated;
3.
For an order that Defendants' right to possession of the Premises has
been terminated;
4.
For past due Rent totaling \$131,714.26, and damages according to proof
but in no case less than \$1,022.83 per day for each day Defendants continue in
possession of the Premises from August 1, 2026 up to the time of Judgment;

(Complaint, Page
4, Prayer.)

These
allegations are supported by the Declaration of Patricia Rocha at ¶¶ 3 – 10.

As noted

above, Plaintiff need not disprove any affirmative defenses. As such, Plaintiff has met its initial burden of demonstrating that it is entitled to judgment as prayed for in the Complaint.

As such, the burden shifts to

Defendant to demonstrate that a triable issue of material fact exists.

In failing to file a timely

opposition, Defendant has not met its burden of demonstrating that a triable issue of material fact exists. As such, the motion for summary judgment is GRANTED.

[1] Civ.

Proc. Code, § 1159 (forcible entry); § 1160 (forcible detainer); § 1161 (unlawful detainer).